Hồ sơ thành lập một LC

Ngân hàng thương mại 3 (Đại học Tôn Đức Thắng)



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SWIFT Message

Outgoing Message

Message Type	MT700		[Issue of a Documentary Credit]
Message No.	8029O171100124		
Sender Bank	SHBKVNVXXXX SHINHAN BANK VIETNAM VIET NAM 138-142 HAI BA TRUNG HO CHI MINH CITY	Receive Bank	SHBKKRSEXXX SHINHAN BANK KOREA, REPUBLIC OF 20, SEJONG-DAERO 9-GIL, JUNG-GU 100 SEOUL
Message Status	VERIFY	User ID	13607634

27		Sequence of Total	:	1/1
40	A	Form of Documentary Credit	:	IRREVOCABLE
20		Documentary Credit Number	:	VDM1301711AS-031
31	C	Date of Issue	:	171103
40	E	Applicable Rules	:	UCP LATEST VERSION
31	D	Date and Place of Expiry	:	171221IN GERMANY
50		Applicant	:	KUK IL VIETNAM CO., LTD NHON TRACH 2 INDUSTRIAL ZONE PHU HOI COMMUNE,NHON TRACH DIST, DONG NAI PR,VIET NAM
59		Beneficiary	:	AGROGRAIN LTD SUCURSAL URUGUAY, RUTA 8, KM17.500 EDIFICIO 300-OFICI 310-006, MONTEVIDEO-UY-91600
32	B	Currency Code, Amount	:	USD742165,36
39	A	Percentage Credit Amount Tolerance	:	03/03
41	D	Available With ... By ...	:	ANY BANK BY NEGOTIATION
43	P	Partial Shipments	:	ALLOWED
43	T	Transshipment	:	ALLOWED
44	E	Port of Loading/Airport of Departure	:	ANY BRAZILIAN PORTS
44	F	Port of Discharge/Airport of Destination	:	CAT LAI PORT IN HO CHI MINH, VIET NAM
44	C	Latest Date of Shipment	:	171130
45	A	Description of Goods and/ or Services	:	DESCRIPTION OF GOODS SALE NO. 35600658 BRAZIL RAW COTTON 2017 MID 1-1/8 3.7-4.7 NCL MIN 28GPT SAMPLE APPROVAL BEFORE SHIPMENT (OFFER NO. 17102705) QUANTITY: 970,024LBS (440 METRIC TONS) UNIT PRICE: USD 0.7651/LB AMOUNT: USD 742,165.36 CFR HOCHIMINH, VIETNAM (INCOTERMS 2010)
46	A	Documents Required	:	1/ SIGNED COMMERCIAL INVOICE IN 03 ORIGINALS 2/ PACKING LIST/DISPATCH NOTES IN 03 ORIGINALS 3/ FULL SET OF ORIGINAL CLEAN ON BOARD OCEAN B/L MADE OUT TO THE ORDER OF SHINHAN BANK VIETNAM DONGNAI BRANCH MARKED FREIGHT PREPAID AND NOTIFY APPLICANT

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				4/ ORIGINAL CERTIFICATE OF ORIGIN ISSUED OR CERTIFY BY CHAMBER OF COMMERCE OR GOVERNMENTAL AUTHORITY WHERE SHIPMENT IS MADE 5/ COPY OF APPLICANTS CERTIFICATE OF SAMPLE APPROVAL, DULY SIGNED BY APPLICANT, SPECIFYING LOT NO. 6/ BENEFICIARYS CERTIFICATE CERTIFYING THAT ALL SHIPPED COTTON BALES ARE THE SAME WITH THE SAMPLES APPROVED BY APPLICANT
47	A	Additional Conditions	:	1/ ALL DRAFTS AND DOCUMENTS MUST BE IN ENGLISH OR ENGLISH TRANSLATED 2/ DISCREPANCY FEE OF USD77 OR EQUIVALENT WILL BE DEDUCT FROM THE PROCEEDS FOR EACH PRESENTATION OF DISCREPANT DOCUMENT. 3/ AN EXTRA COPY OF THE SHIPPING DOCUMENTS MUST BE PRESENTED FOR ISSUING BANKS RETENSION. OTHERWISE, A FEE OF USD11 OR EQUIVALENT WILL BE DEDUCTED FROM PROCEEDS. 4/ KINDLY ACKNOWLEDGE RECEIPT OF THIS CREDIT QUOTING OURL/C NUMBER. 5/ TOLERANCE: 3PCT MORE OR LESS IN QUANTITYAND AMOUNT ARE ACCEPTABLE 6/ THIRD PARTY DOCUMENTS EXCEPT COMERCIAL INVOICE AND DRAFT ARE ALLOWED 7/ BALE ID. AND LOT NO. MUST BE WRITTEN ON PACKING LIST 8/ DOCUMENTS MAY NOT BEAR CREDIT NUMBER EXCEPT INVOICE AND DRAFT 9/ LOT NO. IN PACKING LIST MUST BE SAME AS LOT NO. IN APPLICANTS CERTIFICATE OF SMAPLE APPROVAL 10/ TYPOGRAPHICAL AND SPELLING ERRORS SHALL NO CONSTITUTE A DISCREPANCY UNLESS WITH REGARDING TO QUANTITY AND AMOUNT 11/ ALL DOCUMENTS EXCEPT INVOICE SHOWING DESCRIPTION OF GOODS AS BRAZIL RAW COTTON ARE ACCEPTABLE
71	B	Charges	:	ALL BANKING CHARGES OUTSIDE ISSUING BANKAND ALL RELATIVE REIMBURSEMENT/PAYMENT CHARGES ARE FOR BENEFICIARY'S ACCOUNT
48		Period for Presentation	:	NO LATER THAN 21 CALENDAR DAYS AFTER SHIPMENT DATE BUT WITHIN L/C VALIDITY PERIOD
49		Confirmation Instructions	:	CONFIRM
78		Instructions to the Paying/ Accepting/ Negotiating Bank	:	1/ T/T REIMBURSEMENT IS ALLOWED 2/ ALL REQUIRED DOCUMENTS MUST BE FORWARD IN ONE LOT TO SHINHAN BANK VIET NAM, DONG NAI BRANCH, 1ST FLOOR OF DONACOOP BUILDING, PHUOC HAI AREA, NATIONAL ROAD 51A, LONG THANH, DONG NAI, VIETNAM BY COURIER SERVICES 3/ PAYMENT WILL BE EFFECTED AS PER NEGOTIATING BANKS INSTRUCTIONS AFTER SHIPPING DOCUMENTS RECEIVED BY US ARE IN STRICT COMPLIANCE WITH L/C TERMS AND CONDITIONS.
57	A	Advise Through' Bank	:	HASPDEHHXXX [HAMBURGER SPARKASSE AG] [GERMANY] [ECKE ADOLPHSPLATZ/GR. BURSTAH] [20457 HAMBURG]

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AGROGRAIN LTD – SUCURSAL URUGUAY

Ruta 8, km 17,5 – Edificio @3 – Oficina 114

Montevideo – 91600 – UY – Tel.: +598 2518-7800

January 03rd., 2018

Hamburger Sparkasse
S International Nord
Wikingerweg 1
20537 Hamburg
Bjoern Kugland / Dennis Loose
Ref.: SAG065817.10.10 – MV MSC JEONGMIN, 748R

22,190.80 KGS
BRAZIL RAW COTTON
BULK IN 40 HC
DOCUMENTARY CREDIT NUMBER VDM1301711AS-031 DATE OF ISSUE: 03.11.2017
Applicant : KUK IL VIETNAM CO., LTD
NHON TRACH 2 INDUSTRIAL ZONE
PHU HOI COMMUNE, NHON TRACH DIST,
DONG NAI PR, VIET NAM
ISSUING BANK: SHBKVNVXXXX
SHINHAN BANK VIETNAM LIMITED
138-142 HAI BA TRUNG EMPRESS TOWER
HO CHI MINH CITY

We enclose herewith the following documents in original and respectives copies as below described:

- ✓ COMMERCIAL INVOICE 17007657SF amount of USD 37,430.10 in 03 folds;
- ✓ BILL OF LADING NBR. 961810255 in 03 originals and 03 NN copies;
- ✓ CERTIFICATE OF ORIGIN 030478 in 01 original and 03 copies;
- ✓ PHYTOSANITARY CERTIFICATE 57010/2017-SVAPSNT-SP in 01 original and 03 copies;
- ✓ PACKING LIST/DISPACH NOTES in 03 folds;
- ✓ CERTIFICATE OF SAMPLE APPROVAL in 01 copy;
- ✓ BENECIFIARY'S CERTIFICATE in 01 original and 01 copy;
- ✓ DRAFT in 03 Originals.

- ✓ 1 additional set of n/n copy of ALL DOCUMENTS for the issuing bank's file.

All required documents must be forward in one lot to Shinhan Bank Viet Nam, Dong Nai Branch, 1st Floor of Donacoop Building, Phuoc Hai Area, National Road 51A, Long Thanh, Dong Nai, Vietnam by courier services.

Please use one of our courier account and inform our reference **BU 120015620383** at courier:

- FEDEX 26659140-3
- DHL 655800242
-

- Payment Instruction as follows:
  PLEASE REMIT PAYMENT TO
  CITIBANK N.A. NEW YORK NY
  SWIFT CITIUS33
  (ABA 0210-00089)
  ACCOUNT # 30422431
  IN FAVOUR OF AGROGRAIN LTD SUCURSAL URUGUAY
  UNDER REF INV # 17007657SF

Cordially yours,

AGROGRAIN LTD – SUCURSAL URUGUAY

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AGROGRAIN LTD – SUCURSAL URUGUAY
Ruta 8, km 17,5 – Edificio @3 – Oficina 114
Montevideo – 91600 – UY – Tel.: +598 2518-7800

COMMERCIAL INVOICE 17007657SF
DATE: December 18th, 2017

Buyer
KUK IL VIETNAM CO., LTD
NHON TRACH 2 INDUSTRIAL ZONE
PHU HOI COMMUNE, NHON TRACH DIST,
DONG NAI PR, VIET NAM

Name of Vessel MSC JEONGMIN, 748R

Port of Loading SANTOS, BRAZIL

Port of Discharge CAT LAI PORT IN HO CHI MINH, VIET NAM

Bill of Lading 961810255

Description of goods and/or Services
DESCRIPTION OF GOODS
SALE NO. 35600658
BRAZIL RAW COTTON 2017 MID 1-1/8 3.7-4.7 NCL MIN 28GPT
SAMPLE APPROVAL BEFORE SHIPMENT
(OFFER NO. 17102705)
QUANTITY: 970,024LBS (440 METRIC TONS)
UNIT PRICE: USD 0.7651/LB
AMOUNT: USD 742,165.36
CFR HOCHIMINH, VIETNAM
(INCOTERMS 2010)

DOCUMENTARY CREDIT NUMBER VDM1301711AS-031
DATE OF ISSUE: 03.11.2017

CONTRACT NUMBER	PRODUCT NAME	GROSS WEIGHT/LBS	NET WEIGHT/LBS	GROSS WEIGHT/METRIC TONS	NET WEIGHT/METRIC TONS	UNIT PRICE/USD/LB	AMOUNT/USD
35600658	BRAZIL RAW COTTON	49.316,90	48.921,84	22.370,00	22.190,80	0,7651	37.430,10
						TOTAL	37.430,10

Net Landed Weight at destination will be supervised by Cargo Control controller for our account.

AGROGRAIN LTD – SUCURSAL URUGUAY

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MAERSK LINE

BILL OF LADING FOR OCEAN TRANSPORT OR MULTIMODAL TRANSPORT

SCAC MAEU

B/L No. 961810255

Shipper
CLAIDES LAZARETTI MASUTTI
CPF: 203.740.702-53
ESTRADA CAMPOS DE JULIO/SAPEZAL
KM 1159 LINHA MASUTTI CEP:
78.307000 CAMPOS DE JULIO MT -
BRAZIL ON BEHALF OF*

Booking No.
961810255

Export references

Svc Contract
172938717

Onward inland routing (Not part of Carriage as defined in clause 1. For account and risk of Merchant)

Consignee (negotiable only if consigned "to order", "to order of" a named Person or "to order of bearer")
TO THE ORDER OF SHINHAN BANK
VIETNAM DONGNAI BRANCH

Notify Party (see clause 22)
KUK IL VIETNAM CO., LTD
NHON TRACH 2 INDUSTRIAL ZONE
PHU HOI COMMUNE, NHON TRACH DIST,
DONG NAI PR, VIET NAM

Vessel (see clause 1 + 19)	Voyage No.	Place of Receipt. Applicable only when document used as Multimodal Transport B/L. (see clause 1)
MSC JEONGMIN	748R	
Port of Loading	**Port of Discharge**	**Place of Delivery. Applicable only when document used as Multimodal Transport B/L. (see clause 1)**
SANTOS,BRAZIL	CAT LAI PORT HOCHIMINH, VIETNAM	

PARTICULARS FURNISHED BY SHIPPER

Kind of Packages; Description of goods; Marks and Numbers; Container No./Seal No.	Weight	Measurement
1 Container Said to Contain 112 Bales 01X40' HC CONTAINERS SAID TO CONTAIN: 112 BALES OF BRAZIL RAW COTTON RE: 17/1964713-001 SD: 2176410136/7 NCM: 52010020 GROSS WEIGHT: 22,370.00 KGS NET WEIGHT: 22,190.80 KGS *AGROGRAIN LTD SUCURSAL URUGUAY MRKU3705810 ML-BR3231394 40 DRY 9'6 112 Bales 22370.000 KGS 58.2400 CBM SHIPPER'S LOAD, STOW, WEIGHT AND COUNT FREIGHT PREPAID CY/CY	22370.000 KGS	58.2400 CBM

ORIGINAL

Above particulars as declared by Shipper, but without responsibility of or representation by Carrier (see clause 14)

Freight & Charges	Rate	Unit	Currency	Prepaid	Collect

Carrier's Receipt (see clause 1 and 14). Total number of containers or packages received by Carrier.	Place of Issue of B/L
1 container	Sao Paulo
Number & Sequence of Original B(s)/L	**Date of Issue of B/L**
1/THREE	2017-12-22
Declared Value (see clause 7.3)	**Shipped on Board Date (Local Time)**
	2017-12-18

SHIPPED, as far as ascertained by reasonable means of checking, in apparent good order and condition unless otherwise stated herein, the total number or quantity of Containers or other packages or units indicated in the box entitled "Carrier's Receipt" for carriage from the Port of Loading (or the Place of Receipt, if mentioned above) to the Port of Discharge (or the Place of Delivery, if mentioned above), such carriage being always subject to the terms, rights, defences, provisions, conditions, exceptions, limitations, and liberties hereof (INCLUDING ALL THOSE TERMS AND CONDITIONS ON THE REVERSE HEREOF NUMBERED 1-26 AND THOSE TERMS AND CONDITIONS CONTAINED IN THE CARRIER'S APPLICABLE TARIFF) and the Merchant's attention is drawn in particular to the Carrier's liberties in respect of on deck stowage (see clause 18) and the carrying vessel (see clause 19). Where the bill of lading is non-negotiable the Carrier may give delivery of the Goods to the named consignee upon reasonable proof of identity and without requiring surrender of an original bill of lading. Where the bill of lading is negotiable, the Merchant is obliged to surrender one original, duly endorsed, in exchange for the Goods. The Carrier accepts a duty of reasonable care to check that any such document which the Merchant surrenders as a bill of lading is genuine and original. If the Carrier complies with this duty, it will be entitled to deliver the Goods against what it reasonably believes to be a genuine and original bill of lading, such delivery discharging the Carrier's delivery obligations. In accepting this bill of lading, any local customs or privileges to the contrary notwithstanding, the Merchant agrees to be bound by all Terms and Conditions stated herein whether written, printed, stamped or incorporated on the face or reverse side hereof, as fully as if they were all signed by the Merchant.
IN WITNESS WHEREOF the number of original Bills of Lading stated on this side have been signed and wherever one original Bill of Lading has been surrendered any others shall be void.

Signed for the Carrier Maersk Line A/S

Maersk Brasil (Brasmar) Ltda

As Agent(s)

FABIANO SILVEIRA
CPF 133.848.188-65

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1. DEFINITIONS

"Carriage" means the whole or any part of the carriage, loading, unloading, handling and any and all other services whatsoever undertaken by the Carrier in relation to the Goods.

"Carrier" means Maersk Line A/S or SD Esplanaden, DK-1098, Copenhagen K, Denmark.

"Container" includes any container (including an open top container), flat rack, platform, trailer, transportable tank, pallet or any other similar article used to consolidate the Goods and any connected equipment.

"Freight" includes all charges payable to the Carrier in accordance with the applicable Tariff and this bill of lading.

"Goods" means the whole or any part of the cargo and any packaging accepted from the Shipper and includes any Container not supplied by or on behalf of the Carrier.

"Hague Rules" means the provisions of the International Convention for the Unification of Certain Rules relating to Bills of Lading signed at Brussels on 25th August 1924.

"Holder" means any Person for the time being in possession of this Bill of Lading or to whom rights of suit and/or liability under this bill of lading have been transferred or vested.

"Merchant" includes the Shipper, Holder, Consignee, Receiver of the Goods, any Person owning or entitled to the possession of the Goods or of this bill of lading and anyone acting on behalf of such Person.

"Multimodal Transport" arises if the Place of Receipt and/or the Place of Delivery are indicated on the reverse hereof in the relevant boxes.

"Ocean Transport" arises if the Carriage is not Multimodal Transport.

"Person" includes an individual, corporation, or other legal entity.

"Subcontractor" includes owners, charterers and operators of vessels (other than the Carrier), stevedores, terminal and groupage operators, road and rail transport operators, warehousemen, and any independent contractors employed by the Carrier performing the Carriage or whose services or equipment have been used for the Carriage and any direct or indirect subcontractors, servants and agents thereof whether to direct contractual privity or not.

"Terms and Conditions" means all terms, rights, defences, provisions, conditions, exceptions, limitations and liberties hereof.

"US COGSA" means the US Carriage of Goods by Sea Act 1936.

"Vessel" means any water borne craft used in the Carriage under this bill of lading which may be a feeder vessel or an ocean vessel.

2. CARRIER'S TARIFF

The terms and conditions of the Carrier's applicable Tariff are incorporated herein. Attention is drawn to the terms therein relating to free storage time and to container and vessel loading or discharge. Copies of the relevant provisions of the applicable Tariff are obtainable from the Carrier upon request. In the case of inconsistency between this bill of lading and the applicable Tariff, the bill of lading shall prevail.

3. WARRANTY

The Merchant warrants that in agreeing to the Terms and Conditions hereof he is, or has the authority to contract on behalf of, the Person owning or entitled to possession of the Goods and this bill of lading.

4. SUB-CONTRACTING

4.1 The Carrier shall be entitled to sub-contract on any terms whatsoever the whole or any part of the Carriage.

4.2 It is hereby expressly agreed that:

(a) No Subcontractor, agent or servant shall in any circumstances whatsoever be under any liability whatsoever to the Merchant for any loss, damage or delay of whatsoever kind arising or resulting directly or indirectly from any act, neglect or default on the Subcontractor, agent or servant's part while acting in the course of or in connection with the Goods or the Carriage of the Goods.

(b)

(i) The Merchant undertakes that no claim or allegation whether arising in contract, bailment, tort or otherwise shall be made against any servant, agent, or Subcontractor of the Carrier which imposes or attempts to impose upon any of them or any vessel owned by any of them any liability whatsoever in connection with the Goods or the Carriage of the Goods whether or not arising out of negligence on the part of such Person. The Subcontractor, agent or servant shall also be entitled to enforce the foregoing covenant against the Merchant; and

(ii) if any such claim or allegation should nevertheless be made, to indemnify the Carrier against all consequences thereof.

(c) Without prejudice to the generality of the foregoing provisions of this clause, every exemption, limitation, condition and liberty contained herein (other than Art 10 rule 3 of the Hague Rules) and every right, exemption from liability, defence and immunity of whatsoever nature applicable to the Carrier or to which the Carrier is entitled hereunder including the right to enforce any jurisdiction provision contained herein (clause 26) shall also be available and shall extend to every such Subcontractor, agent or servant, who shall be entitled to enforce the same against the Merchant.

4.3 The provisions of clause 4.2(b) including but not limited to the undertaking of the Merchant contained therein, shall extend to all claims or allegations of whatsoever nature against other Persons chartering space on the carrying vessel.

4.4 The Merchant further undertakes that no claim or allegation in respect of the Goods shall be made against the Carrier by any Person other than in accordance with these Terms and Conditions which imposes or attempts to impose upon the Carrier any liability whatsoever in connection with the Goods or the Carriage of the Goods, whether or not arising out of negligence on the part of the Carrier, and if any such claim or allegation should nevertheless be made, to indemnify the Carrier against all consequences thereof.

5. CARRIER'S RESPONSIBILITY - OCEAN TRANSPORT

5.1 Where the Carriage is Ocean Transport, the Carrier undertakes to perform and/or in his own name to procure performance of the Carriage from the Port of Loading to the Port of Discharge. The liability of the Carrier for loss of or damage to the Goods occurring between the time of acceptance by the Carrier of custody of the Goods at the Port of Loading and the time of the Carrier tendering the Goods for delivery at the Port of Discharge shall be determined in accordance with Articles 1-8 of the Hague Rules save as is otherwise provided in these Terms and Conditions. These articles of the Hague Rules shall apply as a matter of contract.

5.2 The Carrier shall have no liability whatsoever for any loss or damage to the Goods, howsoever caused, if such loss or damage arises before acceptance by the Carrier of custody of the Goods or after the Carrier tendering the cargo for delivery. Notwithstanding the above, to the extent any applicable compulsory law provides to the contrary, the Carrier shall have the benefit of every right, defence, limitation and liberty in the Hague Rules as applied by clause 5.1 during such additional compulsory period of responsibility, notwithstanding that the loss or damage did not occur at sea.

5.3 Where US COGSA applies, then the provisions stated in the said Act shall govern during Carriage to or from a container yard or container freight station at the Port of Loading before loading on the vessel or at the Port of Discharge before delivery to an inland carrier.

5.4 If the Carrier is requested by the Merchant to provide Carriage by an inland carrier and the inland carrier in his discretion agrees to do so, such Carriage shall be procured by the Carrier as agent only to the Merchant and Carrier shall have no liability for such carriage or the acts or omissions of such inland carrier.

6. CARRIER'S RESPONSIBILITY MULTIMODAL TRANSPORT

Where the Carriage is Multimodal Transport, the Carrier undertakes to perform and/or in his own name to procure performance of the Carriage from the Place of Receipt or the Port of Loading, whichever is applicable, to the Port of Discharge or the Place of Delivery, whichever is applicable. The Carrier shall have no liability whatsoever for loss or damage to the Goods occurring before acceptance by the Carrier of custody of the Goods or after the Carrier tendering the Goods for delivery at the applicable points, and the Carrier shall be liable for loss or damage occurring during the Carriage only to the extent set out below:

6.1 Where the stage of Carriage where loss or damage occurred is not known:

(a) the Carrier shall be relieved of liability for any loss or damage where such loss or damage was caused by:

(i) an act or omission of the Merchant or Person acting on behalf of the Merchant other than the Carrier, his servant, agent or Subcontractor;

(ii) compliance with instructions of any Person entitled to give them;

(iii) insufficient or defective condition of packing or marks;

(iv) handling, loading, stowage or unloading of the Goods by the Merchant or any Person acting on his behalf;

(v) inherent vice of the Goods;

(vi) strike, lock out, stoppage or restraint of labour, from whatever cause, whether partial or general;

(vii) a nuclear incident;

(viii) any cause or event which the Carrier could not avoid and the consequences whereof he could not prevent by the exercise of reasonable diligence.

(b) The burden of proof that the loss or damage was due to a cause(s) or event(s) specified in clause 6.1 shall rest on the Carrier. But if there is any evidence the loss or damage is attributable to one or more cause or event specified in clause 6.1(a)(i)- (v) or (vi), it shall be presumed that it was so caused. The Merchant shall, however, be entitled to prove that the loss or damage was not, in fact, caused either wholly or partly by one or more of these causes or events.

6.2 Where the stage of Carriage where the loss or damage occurred is known notwithstanding anything provided for in clause 6.1 and subject to clause 19, the liability of the Carrier in respect of such loss or damage shall be determined:

(a) if the loss or damage is known to have occurred during Carriage by sea for shipments not to or from the United States of America or waterborne Carriage not in the U.S. by the Hague Rules Articles 1-8. These articles of the Hague Rules shall apply as a matter of contract; or

(b) if the loss or damage is known to have occurred during any inland carriage not in the U.S. in accordance with the contract of carriage or tariffs of any inland carrier as whose custody the loss or damage occurred or in accordance with clauses 6.1 and clause 7.2(a), whichever imposes lesser liability on the Carrier; or

(c) if the loss or damage is known to have occurred during Carriage by sea, for shipments to or from the United States of America, or waterborne Carriage in the United States of America or Carriage to or from a container yard or container freight station at Port of Loading before loading on the carrying vessel or at the Port of Discharge before delivery to the inland carrier, by the provisions of U.S. COGSA; or

(d) if the loss or damage is known to have occurred during any inland carriage in the U.S. in accordance with the contract of carriage or tariffs of any inland carrier in whose custody the loss or damage occurred or U.S. COGSA whichever imposes lesser liability on the Carrier.

7. COMPENSATION AND LIABILITY PROVISIONS

7.1 Subject always to the Carrier's right to limit liability as provided for herein, if the Carrier is liable for compensation in respect of loss of or damage to the Goods, such compensation shall be calculated by reference to the value of the Goods plus Freight and insurance if paid. The value of the Goods shall be determined with reference to the commercial invoice, customs declaration, any prevailing market price (at the place and time they are delivered or should have been delivered), production price or the reasonable value of goods of the same kind and/or quality.

7.2 Save as is prohibited in clause 7.2:

(a) the Carrier's liability shall in no event exceed 2 SDR per kilo of the gross weight of the Goods lost, damaged or in respect of which a claim of whatsoever nature arises unless clause 7.2(b) applies;

(b) for shipments to or from the U.S., the liability of the Carrier and/or Vessel shall not exceed USD 500 per Package or customary freight unit, or any lesser limitations afforded per Clause 6.2.

7.3 The Merchant agrees and acknowledges that the Carrier has no knowledge of the value of the Goods and further compensation than that provided for in this bill of lading may be claimed only when, with the consent of the Carrier, (in for multimodal shipments from the U.S. where U.S. inland carriage is undertaken, the Merchant elects to avoid any liability limitation provided herein by proposing extra freight and opting for full liability under the Carmack Amendment by complying with the terms in Carrier's Tariff, and (ii) so till other cases, the Shipper declares and the Carrier states the value of the Goods declared by the Shipper upon which the Ad Valorem Freight is based in the box marked "Declared Value" on the reverse of this bill of lading and extra freight paid. In that case, the amount of the declared value shall be substituted for the limits laid down in this bill of lading. Any partial loss or damage shall be adjusted pro rata on the basis of such declared value.

7.4 Nothing in this bill of lading shall operate to limit or deprive the Carrier of any statutory protection, defence, exception or limitation of liability authorised by any applicable laws, statutes or regulations of any country. The Carrier shall have the benefit of the said laws, statutes or regulations as if it were the owner of any carrying Vessel.

8. GENERAL

8.1 The Carrier does not undertake that the Goods or any documents relating thereto shall arrive or be available at any point or place at any stage during the Carriage or at the Port of Discharge or the Place of Delivery at any particular time or to meet any particular requirement of any license, permission, sale contract, or credit of the Merchant or any market or use of the Goods and the Carrier shall under no circumstances whatsoever and howsoever arising be liable for any direct, indirect or consequential loss or damage caused by delay. If the Carrier should nevertheless be held legally liable for any such direct or indirect or consequential loss or damage caused by delay, such liability shall in no event exceed the Freight paid.

8.2 Save as is otherwise provided herein, the Carrier shall in no circumstances be liable for direct or indirect or consequential loss or damage arising from any other cause whatsoever or for loss of profits.

8.3 Once the Goods have been received by the Carrier for Carriage the Merchant shall not be entitled neither to impede, delay, suspend or stop or otherwise interfere with the Carrier's intended manner of performance of the Carriage or the exercise of the liberties conferred by this bill of lading nor to instruct or request delivery of the Goods at other Port or Place than the Port of Discharge or Place of Delivery named on the reverse hereof or such other Port or Place selected by the Carrier in the exercise of the liberties herein, for any reason whatsoever. The Merchant shall indemnify the Carrier against all claims, liabilities, losses, damages, costs, delays, attorney fees and/or expenses caused to the Carrier, his Subcontractors, servants or agents or to any other cargo or to the owner of such cargo during the Carriage arising or resulting from any impediment, delay, suspension, stoppage or interference whatsoever in the Carriage of the Goods.

8.4 These Terms and Conditions shall govern the responsibility of the Carrier in connection with or arising out of the supplying of a Container to the Merchant whether before, during or after the Carriage.

9. NOTICE OF LOSS, TIME BAR

Unless notice of loss or damage and the general nature of such loss or damage be given in writing to the Carrier or his agents at the Place of Delivery (or Port of Discharge if no Place of Delivery is named on the reverse hereof) before or at the time of removal of the Goods or if the loss or damage is not apparent within three days thereafter, such removal shall be prima facie evidence of the delivery by the Carrier of the Goods as described in this bill of lading. In any event, the Carrier shall be discharged from all liability whatsoever in respect of the Goods unless suit is brought within one year after their delivery or the date when they should have been delivered.

10. APPLICATION OF TERMS AND CONDITIONS

These Terms and Conditions shall apply in any action against the Carrier for any loss or damage, whatsoever and howsoever occurring (and, without restricting the generality of the foregoing, including delay), and whether the action be founded in contract, bailment or in tort and even if the loss, damage or delay arose as a result of unseaworthiness, negligence or fundamental breach of contract.

11. SHIPPER-PACKED CONTAINERS

If a container has not been packed by the Carrier:

11.1 This bill of lading shall be a receipt only for such a Container;

11.2 The Carrier shall not be liable for loss of or damage to the contents and the Merchant shall indemnify the Carrier against any injury, loss, damage, liability or expense whatsoever incurred by the Carrier if such loss of or damage to the contents and/or such injury, loss, damage, liability or expense has been caused by any matter beyond his control including, inter alia, without prejudice to the generality of this exclusion:

(a) the number in which the Container has been packed; or

(b) the unsuitability of the Goods for carriage in Containers; or

(c) the unsuitability or defective condition of the Container; or

(d) the incorrect setting or any thermostatic, ventilation, or other special controls thereof, provided that, if the Container has been supplied by the Carrier, this unsuitability or defective condition could have been apparent upon reasonable inspection by the Merchant at or prior to the time the Container was packed;

11.3 The Merchant is responsible for the packing and sealing of all shipper packed Containers and, if a shipper packed Container is delivered by the Carrier with any original seal intact, the Carrier shall not be liable for any shortage of Goods ascertained at delivery.

11.4 The Shipper shall inspect Containers before packing them and the use of Containers shall be prima facie evidence of their being sound and suitable for use.

12. PERISHABLE CARGO

12.1 Goods, including Goods of a perishable nature, shall be carried in ordinary Containers without special protection, services or other measures unless they are noted on the reverse side of this bill of lading that the Goods will be carried in a refrigerated, heated, electrically ventilated or otherwise specifically equipped Container or are to receive special attention in any way. The Merchant undertakes not to tender for Carriage any Goods which require refrigeration, ventilation or any other specialised attension without giving written notice of their nature and the required temperature or other setting of the thermostatic, ventilation or other special controls. If the above requirements are not complied with, the Carrier shall not be liable for any loss of or damage to the Goods howsoever arising.

12.2 The Merchant should note that refrigerated Containers are not designed:

(a) to freeze down cargo which has not been presented for stuffing at or below its designated carrying temperature and the Carrier shall not be responsible for the consequences of cargo being presented at a higher temperature than that required for the Carriage; nor

(b) to hold specific humidity levels, albeit a setting facility exists, in that humidity is influenced by many external factors and the Carrier does not guarantee the maintenance of any intended level of humidity inside any Container.

12.3 The term "apparent good order and condition" when used in this bill of lading with reference to goods which require refrigeration, ventilation or other specialised attention does not mean that the Goods, when received, were verified by the Carrier as being at the carrying temperature, humidity level or other condition designated by the Merchant.

12.4 The Carrier shall not be liable for any loss of or damage to the Goods arising from latent defects, derangement, breakdown, defrosting, stoppage of the refrigerating, ventilating or any other specialised machinery, plant, insulation and/or apparatus of the Container, Vessel, conveyance and any other facilities, provided that the Carrier shall before and at the beginning of the Carriage exercise due diligence to maintain the Container supplied by the Carrier in an efficient state.

13. INSPECTION OF GOODS

The Carrier shall be entitled, but under no obligation, to open and/or scan any package or Container at any time and to inspect the contents. If it appears at any time that the Goods cannot safely or properly be carried or carried further, either at all or without incurring any additional expense or taking any measures in relation to the Container or the Goods, the Carrier may without notice to the Merchant (but as his agent only) take any measures and/or incur any reasonable additional expense to carry or to continue the Carriage thereof, and/or to sell or dispose of the Goods and/or to abandon the Carriage and/or to store them ashore or afloat, under cover or in the open, at any place, whichever the Carrier in his absolute discretion considers most appropriate, which sale, disposal, abandonment or storage shall be deemed to constitute due delivery under this bill of lading. The Merchant shall indemnify the Carrier against any reasonable additional expense so incurred. The Carrier in exercising the liberties contained in this clause shall not be under any obligation to take any particular measures and shall not be liable for any loss, delay or damage howsoever arising from any action or lack of action under this clause.

14. DESCRIPTION OF GOODS

14.1 This bill of lading shall be prima facie evidence of the receipt by the Carrier in apparent good order and condition, except as otherwise noted, of the total number of Containers or other packages or units indicated in the box entitled "Carrier's Receipt" on the reverse side hereof.

14.2 No representation is made by the Carrier as to the weights, contents, measure, quantity, quality, description, condition, marks, numbers or value of the Goods and the Carrier shall be under no responsibility whatsoever in respect of such description or particulars.

14.3 The Shipper warrants to the Carrier that the particulars relating to the Goods as set out on the reverse hereof have been checked by the Shipper on receipt or this bill of lading and that such particulars, and any other particulars furnished by or on behalf of the Shipper are adequate and correct. The Shipper also warrants that the Goods are lawful goods, and contain no contraband, drugs or other illegal substances or stowaways, and that the Goods will not cause loss, damage or expense to the Carrier, or to any other cargo.

14.4 If any particulars of any letter of credit and/or import license and/or sales contract and/or invoice or order number and/or details of any contract to which the Carrier is not a party are shown on the face of this bill of lading, such particulars are included at the sole risk of the Merchant and for his convenience. The Merchant agrees that the inclusion of such particulars shall not be regarded as a declaration of value and in no way increases Carrier's liability under this bill of lading.

15. MERCHANT'S RESPONSIBILITY

15.1 All of the Persons coming within the definition of Merchant in clause 1, including any principal of such Person, shall be jointly and severally liable to the Carrier for the due fulfilment of all obligations undertaken by the Merchant in this bill of lading.

15.2 The Merchant shall be liable for and shall indemnify the Carrier against all loss, damage, delay, fines, attorney fees and/or expenses arising from any breach of any of the warranties in clause 14.3 or elsewhere in this bill of lading and from any other cause whatsoever in connection with the Goods for which the Carrier is not responsible.

15.3 The Merchant shall comply with all regulations or requirements of customs, port and other authorities, and shall bear and pay all duties, taxes, fines, imposts, expenses or losses (including, without prejudice to the generality of the foregoing, Freight for any additional Carriage undertaken incurred or suffered by reason of any failure to so comply or by reason of any illegal, incorrect or insufficient declaration, marking, numbering or addressing of the Goods, and shall indemnify the Carrier in respect thereof.

15.4 If Containers supplied by or on behalf of the Carrier are unpacked by or for the Merchant, the Merchant is responsible for returning the empty Containers, with interiors clean, odour free and in the same condition as received, to the point or place designated by the Carrier, within the time prescribed. Should a Container not be returned in the condition required and/or within the time prescribed in the Tariff, the Merchant shall be liable for any detention, loss or expense incurred as a result thereof.

15.5 Containers released into the care of the Merchant for packing, unpacking or any other purpose whatsoever are at the sole risk of the Merchant until redelivered to the Carrier. The Merchant shall indemnify the Carrier for all loss of and/or damage and/or delay to such Containers, and all liability claims from third parties or costs or fines resulting from Merchant's use of such Containers. Merchants are deemed to be aware of the dimensions and capacity of any Containers released to them.

16. FREIGHT, EXPENSES AND FEES

16.1 Full Freight shall be payable based on particulars furnished by or on behalf of the Shipper. The Carrier may at any time open the Goods or Container(s) and, if the Shipper's particulars are incorrect the Merchant and the Goods shall be liable for the correct Freight and any expenses incurred in examining, weighing, measuring, or valuing the Goods.

16.2 Full Freight shall be considered completely earned on receipt of the Goods by the Carrier and shall be paid and non-refundable in any event.

16.3 All sums payable to the Carrier are due on demand and shall be paid in full in United States currency or, at the Carrier's option, in its equivalent in the currency of the Port of Loading or of Discharge or the Place of Receipt or of Delivery or as specified in the Carrier's Tariff.

16.4 The Merchant's attention is drawn to the stipulations concerning currency in which the Freight is to be paid, rate of exchange, devaluation, additional insurance premium and other contingencies relative to Freight in the applicable Tariff. In the event of any discrepancy between Freight (incl. charges etc) items in the bill of lading and any Carrier invoices, the latter shall prevail.

16.5 All Freight shall be paid without any set off, counter claim, deduction or stay of execution at latest before delivery of the Goods.

16.6 If the Merchant fails to pay the Freight when due he shall be liable also for payment of service fee, interest due on any outstanding and/or overdue sum, reasonable attorney fees, measuring or weighing fees incurred in collecting any sums due to the Carrier. Payment of Freight and charges to a freight forwarder, broker or anyone other than the Carrier or its authorised agent, shall not be deemed payment to the Carrier and shall be made at the Merchant's sole risk.

16.7 Despite the acceptance by the Carrier of instructions to collect Freight, duties, fees, demurrage/detention and costs and expenses from the shipper or consignee or any other Person, then, in the absence of evidence of payment (for whatever reason) by such shipper or consignee or other Person when due, the Merchant shall be and remain liable for and to indemnify the Carrier for Freight, duties, fees, demurrage/detention and costs and expenses on receipt of evidence of demand within the meaning of clause 16.3.

16.8 If the Carrier, at its sole discretion, grants credit on any sums payable to the Carrier, the terms and conditions applicable to any credit (Credit terms) are available from the Carrier or his authorised agents or at http://terms.maerskline.com/credit. The applicable Credit terms will automatically apply to any granting of credit by the Carrier, unless otherwise agreed by the Carrier.

17. LIEN

The Carrier shall have a lien on the Goods and any documents relating thereto for all sums payable to the Carrier under this contract and for general average contributions to whomsoever due. The Carrier shall also have a lien against the Merchant on the Goods and any document relating thereto for all sums due by the Merchant to the Carrier under any other contract whether or not related to the Carriage. The Carrier may exercise his lien at any time and any place at his sole discretion, whether the contractual Carriage is completed or not. In any event any lien shall extend to cover the cost of recovering any sums due and for that purpose the Carrier shall have the right to sell the Goods by public auction or private treaty, without notice to the Merchant. The Carrier's lien shall survive delivery of the Goods.

18. OPTIONAL STOWAGE, DECK CARGO AND LIVESTOCK

18.1 The Goods may be packed by the Carrier in Containers and consolidated with other goods in Containers.

18.2 Goods whether packed in Containers or not, may be carried on deck or under deck without notice to the Merchant. The Carrier shall not be required to note, mark or stamp on the bill of lading any statement of such on deck carriage. Save as provided in clause 18.3, such Goods (except livestock) carried on or under deck shall participate in general average and shall be deemed to be within the definition of goods for the purposes of the Hague Rules or US COGSA and shall be carried subject to such Rules or Act, whichever is applicable.

18.3 Goods (not being Goods stowed in Containers other than flats or pallets) which are stated herein to be carried on deck and livestock, whether or not carried on deck, are carried without responsibility on the part of the Carrier for loss or damage of whatsoever nature or delay arising during the Carriage whether caused by unseaworthiness or negligence or any other cause whatsoever and neither the Hague Rules nor US COGSA shall apply.

19. METHODS AND ROUTES OF CARRIAGE

19.1 The Carrier may at any time and without notice to the Merchant:

(a) use any means of transport or storage whatsoever;

(b) transfer the Goods from one conveyance to another including transshipping or carrying the same on a Vessel other than the Vessel named on the reverse hereof or by any other means of transport whatsoever and even though transshipment or forwarding of the Goods may not have been contemplated or provided for herein;

(c) unpack and remove the Goods which have been packed into a Container and forward them via Container or otherwise;

(d) sail without pilots; proceed via any route (whether or not the nearest or most direct or customary or advertised route) at any speed and proceed to, return to and stay at any port or place whatsoever (including the Port of Loading herein provided) once or more often, and in any order in or out of the route or in a contrary direction to or beyond the port of discharge once or more often;

(e) load and unload the Goods at any place or port (whether or not any such port is named on the reverse hereof as the Port of Loading or Port of Discharge) and store the Goods at any such port or place;

(f) comply with any orders or recommendations given by any government or authority or any Person or body acting purporting to act as or on behalf of such government or authority or having under the terms of the insurance on any conveyance employed by the Carrier the right to give orders or directions.

19.2 The liberties set out in clause 19.1 may be invoked by the Carrier for any purpose whatsoever whether or not connected with the Carriage of the Goods, including but not limited to loading or unloading other goods, bunkering or embarking or disembarking any person(s), undergoing repairs and/or dry-docking, towing or being towed, assisting other vessels, making trial trips and adjusting instruments. Anything done or not done in accordance with clause 19.1 or any delay arising therefrom shall be deemed to be within the contractual Carriage and shall not be a deviation.

20. MATTERS AFFECTING PERFORMANCE

If at any time Carriage is or is likely to be affected by any hindrance, risk, danger, delay, difficulty or disadvantage of whatsoever kind and howsoever arising which cannot be avoided by the exercise of reasonable endeavours, (even though the circumstances giving rise to such hindrance, risk, danger, delay, difficulty or disadvantage existed at the time this contract was entered into or the Goods were received for Carriage) the Carrier may at his sole discretion and without notice to the Merchant and whether or not the Carriage is commenced either:

(a) Carry the Goods to the contracted Port of Discharge or Place of Delivery, whichever is applicable, by an alternative route to that indicated in this bill of lading or that which is usual for Goods consigned to that Port of Discharge or Place of Delivery. If the Carrier elects to invoke the terms of this clause 20(a), then, notwithstanding the provisions of clause 19 hereof, he shall be entitled to charge such additional Freight as the Carrier may determine; or

(b) Suspend the Carriage of the Goods and store them ashore or afloat under these Terms and Conditions and endeavour to forward them as soon as possible, but the Carrier makes no representations as to the maximum period of suspension. If the Carrier elects to invoke the terms of this clause 20(b) then, notwithstanding the provisions of clause 19 hereof, he shall be entitled to charge such additional Freight and costs as the Carrier may determine; or

(c) Abandon the Carriage of the Goods and place them at the Merchant's disposal at any place or port, which the Carrier may deem safe and convenient, whereupon the responsibility of the Carrier in respect of such Goods shall cease. The Carrier shall nevertheless be entitled to full Freight on the Goods received for the Carriage, and the Merchant shall pay any additional costs incurred by reason of the abandonment of the Goods. If the Carrier elects to use an alternative route under clause 20(a) or to suspend the Carriage under clause 20(b) this shall not prejudice his right subsequently to abandon the Carriage.

21. DANGEROUS GOODS

21.1 No Goods which are or which may become of a dangerous, noxious, hazardous, flammable or damaging nature (including radioactive material) or which are or may become liable to damage any Persons or property whatsoever, and whether or not as listed in any official or unofficial, international or national code, convention, listing or table shall be tendered to the Carrier for Carriage without previously giving written notice of their nature, character, name, label and classification (if applicable) to the Carrier and obtaining his consent in writing and without distinctly marking the Goods and the Container or other covering on the outside so as to indicate the nature and character of any such Goods, and so as to comply with any applicable laws, regulations or requirements. If any such Goods are delivered to the Carrier without obtaining his consent and/or such marking, or if in the opinion of the Carrier the Goods are or are liable to become of a dangerous, noxious, hazardous, flammable or damaging nature, they may at any time or place be unloaded, destroyed, disposed of, abandoned or rendered harmless without compensation to the Merchant and without prejudice to the Carrier's right to Freight.

21.2 The Merchant warrants that such Goods are packed in a manner adequate to withstand the risks of Carriage having regard to their nature and in compliance with all laws, regulations or requirements which may be applicable to the Carriage.

21.3 The Merchant shall indemnify the Carrier against all claims, liabilities, loss, damage, delay, costs, fines and/or expenses arising in consequence of the Carriage of such Goods, and/or arising from breach of any of the warranties in clause 21.2 including any steps taken by the Carrier pursuant to clause 21.1 whether or not the Merchant was aware of the nature of such Goods.

21.4 Nothing contained in this clause shall deprive the Carrier of any of his rights provided for elsewhere.

22. NOTIFICATION, DISCHARGE AND DELIVERY

22.1 Any mention in this bill of lading of parties to be notified of the arrival of the Goods is solely for information of the Carrier. Failure to give such notification shall not involve the Carrier in any liability nor relieve the Merchant of any obligation hereunder.

22.2 The Merchant shall take delivery of the Goods within the time provided for in the Carrier's applicable Tariff. If the Merchant fails to do so, the Carrier may without notice unpack the Goods if packed in containers and/or store the Goods ashore, afloat, in the open or under cover at the sole risk of the Merchant. Such storage shall constitute due delivery hereunder, and thereupon all liability whatsoever of the Carrier in respect of the Goods or that part thereof shall cease and the costs of such storage shall forthwith upon demand be paid by the Merchant to the Carrier.

22.3 If the Carrier is obliged to discharge the Goods into the hands of any customs, port or other authority, such discharge shall constitute due delivery of the Goods to the Merchant under this bill of lading.

22.4 If the Goods are unclaimed within a reasonable time or whenever in the Carrier's opinion the Goods are likely to deteriorate, decay or become worthless, or incur charges whether for storage or otherwise in excess of their value, the Carrier may at his discretion and without prejudice to any other rights which he may have against the Merchant, without notice and without any responsibility attaching to him sell, abandon or otherwise dispose of the Goods at the sole risk and expense of the Merchant and apply any proceeds of sale in reduction of the sums due to the Carrier by the Merchant.

22.5 Refusal by the Merchant to take delivery of the Goods in accordance with the terms of this clause and/or to mitigate any loss or damage thereto shall constitute a waiver by the Merchant to the Carrier of any claim whatsoever relating to the Goods or the Carriage thereof.

23. BOTH TO BLAME COLLISION CLAUSE

The Both to Blame Collision and New Jason clauses published and/or approved by BIMCO and obtainable from the Carrier or his agent upon request are hereby incorporated herein.

24. GENERAL AVERAGE AND SALVAGE

24.1 General average to be adjusted at any port or place at the Carrier's option and to be settled according to the York Antwerp Rules 1994, this covering all Goods carried on or under deck. General average on a Vessel not operated by the Carrier shall be adjusted according to the requirements of the operator of that Vessel.

24.2 Such security including a cash deposit as the Carrier may deem sufficient to cover the estimated contribution of the Goods and any salvage and special charges thereon, shall, if required, be submitted to the Carrier prior to delivery of the Goods. The Carrier shall be under no obligation to exercise any lien for general average contribution due to the Merchant.

24.3 Should the Carrier in its own discretion choose to post general average and/or salvage security due from cargo interests or pay general average and/or salvage contributions due from cargo interests, the Merchant hereby assigns to the Carrier all his rights in respect of the general average and/or salvage.

24.4 If a salving ship is owned or operated by the Carrier, salvage shall be paid for as fully as if the said salving ship belonged to strangers.

25. VARIATION OF THE CONTRACT AND VALIDITY

25.1 No servant or agent of the Carrier shall have the power to waive or vary any terms and Conditions unless such waiver or variation is in writing and is specifically authorised or ratified in writing by the Carrier.

25.2 In the event that anything herein contained is inconsistent with any applicable international convention or national law, which cannot be departed from by private contract, the provisions hereof shall to the extent of such inconsistency but no further be null and void.

26. LAW AND JURISDICTION

For shipments to or from the U.S. any dispute relating to this bill of lading shall be governed by U.S. law and the United States Federal Court of the Southern District of New York is to have exclusive jurisdiction to hear all disputes in respect hereof. In all other cases, this bill of lading shall be governed by and construed in accordance with English law and all disputes arising hereunder shall be determined by the English High Court of Justice in London to the exclusion of the jurisdiction of the courts of any other country unless the Carrier and at the Carrier's sole option, the Carrier may bring proceedings against the Merchant at a competent court of [illegible]

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ASSOCIAÇÃO COMERCIAL DE SANTOS
desde 1870

RUA XV DE NOVEMBRO, 137 - SANTOS - SP - BRASIL - CEP 11010-151
TEL.: (13) 3212-8200 - FAX: (13) 3212-8206
www.acs.org.br - E-MAIL: certificado@acs.org.br

CERTIFICADO DE ORIGEM
CERTIFICATE OF ORIGIN

EXPORTADOR
EXPORTER
CLAIDES LAZARETTI MASUTTI
CPF: 203.740.702-53
ESTRADA CAMPOS DE JULIO/SAPEZAL KM
1159 LINHA MASUTTI CEP: 78.307-000
CAMPOS DE JULIO MT - BRAZIL ON
BEHALF OF AGROGRAIN LTD SUCURSAL
URUGUAY

CERTIFICADO Nº / CERTIFICATE Nº: 030478

ORIGINAL

NAVIO / VESSEL: MSC JEONGMIN, 748R

DATA DE EMBARQUE / DATE OF LADING: 2017-12-18

IMPORTADOR
IMPORTER

KUK IL VIETNAM CO., LTD
NHON TRACH 2 INDUSTRIAL ZONE
PHU HOI COMMUNE, NHON TRACH DIST,
DONG NAI PR, VIET NAM

CONHECIMENTO DE EMBARQUE Nº / BILL OF LADING Nº: 961810255

DESTINO / DESTINATION: CAT LAI PORT HOCHIMINH, VIETNAM

DESCRIÇÕES DAS MERCADORIAS / DESCRIPTION OF GOODS	PESO / WEIGHT
112 BALES OF BRAZIL RAW COTTON PORT OF LOADING: Santos, Brazil CONSIGNEE: TO THE ORDER OF SHINHAN BANK VIETNAM DONGNAI BRANCH PORT OF DISCHARGE: CAT LAI PORT IN HO CHI MINH, VIET NAM	GROSS WEIGHT: 22,370.00 KGS NET WEIGHT: 22,190.80 KGS

QTDE. DE ANEXOS
QTTY. OF ATTACHED

A ASSOCIAÇÃO COMERCIAL DE SANTOS CERTIFICA À VISTA DOS CONHECIMENTOS E DEMAIS DOCUMENTOS AUTÊNTICOS EXIBIDOS PEL
THE ASSOCIAÇÃO COMERCIAL DE SANTOS, CERTIFIES, IN THE LIGHT OF BILLS OF LADING AND FURTHER AUTHENTIC DOCUMENTS EXHIBITED BY TH

INTERESSADOS, QUE AS MERCADORIAS ACIMA DISCRIMINADAS SÃO DE FATO DE ORIGEM BRASILEIRA.
CONCERNED PARTIES, THAT THE GOODS ABOVE DISCRIMINATED ARE IN FACT OF BRAZILIAN ORIGIN.

SANTOS,
20 DEZ 2017

Associação Comercial de Santos
Ricardo de Souza Melo
CPF: 224.428.698 37

ASSINATURA
SIGNATURE

OBSERVAÇÃO: QUALQUER EMENDA OU RASURA INUTILIZA O PRESENTE CERTIFICADO
PLEASE NOTE: ANY AMENDMENT OR ERASURE INVALIDATES THE PRESENT CERTIFICATE.

Nº DE CONTROLE DO FORMULÁRIO
CONTROL NUMBER FORM

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CERTIFICADO FITOSSANITÁRIO
PHYTOSANITARY CERTIFICATE Nº 00057010/2017-SVAPSNT-SP

MINISTÉRIO DA AGRICULTURA, PECUÁRIA E ABASTECIMENTO
DEPARTAMENTO DE SANIDADE VEGETAL
ORGANIZAÇÃO NACIONAL DE PROTEÇÃO FITOSSANITÁRIA DO BRASIL
PLANT PROTECTION ORGANIZATION OF BRAZIL

1. Para: Organização Nacional de Proteção Fitossanitária de: VIETNA / VIETNAM
To: Plant Protection Organization(s) of

DESCRIÇÃO DO ENVIO / ***DESCRIPTION OF CONSIGNMENT***

2. Nome e endereço do exportador / ***Name and address of exporter***

CLAIDES LAZARETTI MASUTTI
ESTRADA CAMPOS DE JULIO/SAPEZAL KM
1159 LINHA MASUTTI
CAMPOS DE JULIO-MT – BRASIL/BRAZIL

3. Nome e endereço do destinatário declarado / ***Declared name and address of consignee***

KUK IL VIETNAM CO., LTD
NHON TRACH 2 INDUSTRIAL ZONE
PHU HOI COMMUNE, NHON TRACH DIST,
DONG NAI PR, VIET NAM

4. Lugar de Origem / ***Place of Origin***
SÃO PAULO / BRASIL / BRAZIL

5. Meios de transporte declarados / ***Declared means of conveyance***
SÃO PAULO / BRASIL / BRAZIL

6. Ponto de ingresso declarado / ***Declared point of entry***
PORTO DE CAT LAI EM HO CHI MINH, VIETNA
CAT LAI PORT IN HO CHI MINH, VIETNAM

7. Número e descrição dos volumes / ***Number and description of packages***
112 FARDOS / 112 BALES

8. Nome do produto e quantidade declarada / ***Name of produce and quantity declared***
ALGODÃO EM PLUMA / RAW COTTON
PESO LÍQUIDO: 22.190,80 KGS
NET WEIGHT: 22,190,80 KGS

9. Marcas distintivas / ***Distinguishing marks***
MSC JEONGMIN, 748R

10. Nome científico dos vegetais / ***Botanical name of plants***
Gossypium hirsutum

11. Pelo presente certifica-se que os vegetais, seus produtos ou outros artigos regulamentados aqui descritos foram inspecionados e/ou analisados, de acordo com os procedimentos oficiais adequados e considerados livres das pragas quarentenárias especificadas pela parte contratante importadora e que cumprem os requisitos fitossanitários vigentes da parte contratante importadora, incluídos os relativos às pragas não quarentenárias regulamentadas.
This is to certify that the plants, plant products or other regulated articles described herein have been inspected and/or tested according to appropriate official procedures and are considered to be free from the quarantine pests specified by the importing contracting party and to conform with the current phytosanitary requirements of the importing contracting party, including those for regulated non-quarentine pests.

DECLARAÇÃO ADICIONAL / ***ADDITIONAL DECLARATION***

DATA DA INSPEÇÃO: 07/DEZ/2017
DATE OF INSPECTION: DEC/07/2017

TRATAMENTO DE DESINFESTAÇÃO E/OU DESINFECÇÃO / ***DISINFESTATION AND/OR DISINFECTION TREATMENT***

12. Data do Tratamento *Date of Treatment*	13. Produto químico (ingrediente ativo) *Chemical (active ingredient)*	14. Concentração/ *Concentration*	15. Duração e Temperatura / *Duration and Temperature*
NIHIL	NIHIL	NIHIL	NIHIL

16. Tratamento / *Treatment*	17. Informação adicional / *Additional information*
NIHIL	NIHIL

18. Carimbo da Organização
Stamp of organization

MINISTÉRIO DA AGRICULTURA, PECUÁRIA E ABASTECIMENTO
SECRETARIA DE DEFESA AGROPECUÁRIA
DEPARTAMENTO DE SANIDADE VEGETAL - DSV
VIGIAGRO

19. Lugar de Expedição / ***Place of issue***
SANTOS - SÃO PAULO

20. Data de emissão / ***Date of issue***
22/DEZ/2017

21. Nome do Fiscal Federal Agropecuário autorizado / ***Name of authorized officer***
ANTONIO KWASNIESKI FILHO

22. Assinatura do Fiscal Federal Agropecuário Autorizado / ***Signature of authorized officer***

23. Nº de registro COSAVE / ***COSAVE Registration number***
BR 629

O Departamento e seus funcionários e representantes isentam-se de toda responsabilidade econômica e/ou comercial resultantes de
No financial liability with respect to this certificate shall attach to Departamento de Sanidade Vegetal or to any of its officers or representatives.

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PACKING LIST/DISPACH NOTES

CONTAINER Nº: MRKU3705810
NUMBER OF BALES: 112
GROSS WEIGHT: 22,370.000 Kgs
NET WEIGHT: 22,190.800 Kgs
BRAZIL RAW COTTON

Seq	Bale	Gross Weight Kgs	Net Weight Kgs	Lot (as Advised)	Seq	Bale	Gross Weight Kgs	Net Weight Kgs	Lot (as Advised)	Seq	Bale	Gross Weight Kgs	Net Weight Kgs	Lot (as Advised)
1	0007898546501147129	202	200,4	297	51	0007898546501147733	202	200,4	297	101	0007898546503148316	202	200,4	297
2	0007898546501147130	197	195,4	297	52	0007898546501147748	199	197,4	297	102	0007898546503148317	199	197,4	297
3	0007898546501147134	201	199,4	297	53	0007898546501147768	201	199,4	297	103	0007898546503148318	201	199,4	297
4	0007898546501147135	198	196,4	297	54	0007898546501147774	202	200,4	297	104	0007898546503148319	202	200,4	297
5	0007898546501147136	200	198,4	297	55	0007898546501147783	200	198,4	297	105	0007898546503148320	200	198,4	297
6	0007898546501147654	200	198,4	297	56	0007898546501147794	200	198,4	297	106	0007898546503148321	200	198,4	297
7	0007898546501147661	202	200,4	297	57	0007898546501147795	202	200,4	297	107	0007898546503148322	201	199,4	297
8	0007898546501147662	197	195,4	297	58	0007898546501147799	199	197,4	297	108	0007898546503148323	197	195,4	297
9	0007898546501147663	201	199,4	297	59	0007898546503147952	201	199,4	297	109	0007898546503148324	201	199,4	297
10	0007898546501147664	198	196,4	297	60	0007898546503147953	200	198,4	297	110	0007898546503148325	198	196,4	297
11	0007898546501147665	202	200,4	297	61	0007898546503147954	202	200,4	297	111	0007898546503148326	202	200,4	297
12	0007898546501147666	197	195,4	297	62	0007898546503147955	197	195,4	297	112	0007898546504148998	197	195,4	297
13	0007898546501147667	201	199,4	297	63	0007898546503147960	201	199,4	297					
14	0007898546501147668	198	196,4	297	64	0007898546503147968	198	196,4	297					
15	0007898546501147669	200	198,4	297	65	0007898546503147970	200	198,4	297					
16	0007898546501147670	200	198,4	297	66	0007898546503147972	200	198,4	297					
17	0007898546501147671	202	200,4	297	67	0007898546503147977	202	200,4	297					
18	0007898546501147672	197	195,4	297	68	0007898546503147978	197	195,4	297					
19	0007898546501147673	201	199,4	297	69	0007898546503147992	201	199,4	297					
20	0007898546501147674	198	196,4	297	70	0007898546503147994	198	196,4	297					
21	0007898546501147675	202	200,4	297	71	0007898546503147995	202	200,4	297					
22	0007898546501147676	197	195,4	297	72	0007898546503148000	197	195,4	297					
23	0007898546501147681	201	199,4	297	73	0007898546502148184	201	199,4	297					
24	0007898546501147682	198	196,4	297	74	0007898546502148185	198	196,4	297					
25	0007898546501147683	200	198,4	297	75	0007898546502148187	200	198,4	297					
26	0007898546501147684	200	198,4	297	76	0007898546502148189	200	198,4	297					
27	0007898546501147685	202	200,4	297	77	0007898546502148190	202	200,4	297					
28	0007898546501147686	197	195,4	297	78	0007898546502148191	197	195,4	297					
29	0007898546501147687	201	199,4	297	79	0007898546502148192	201	199,4	297					
30	0007898546501147688	198	196,4	297	80	0007898546502148194	198	196,4	297					
31	0007898546501147689	202	200,4	297	81	0007898546502148196	202	200,4	297					
32	0007898546501147695	197	195,4	297	82	0007898546502148197	197	195,4	297					
33	0007898546501147696	201	199,4	297	83	0007898546502148198	201	199,4	297					
34	0007898546501147697	198	196,4	297	84	0007898546502148199	198	196,4	297					
35	0007898546501147698	200	198,4	297	85	0007898546502148200	200	198,4	297					
36	0007898546501147699	200	198,4	297	86	0007898546503148301	200	198,4	297					
37	0007898546501147710	202	200,4	297	87	0007898546503148302	202	200,4	297					
38	0007898546501147712	197	195,4	297	88	0007898546503148303	197	195,4	297					
39	0007898546501147713	201	199,4	297	89	0007898546503148304	201	199,4	297					
40	0007898546501147714	198	196,4	297	90	0007898546503148305	198	196,4	297					
41	0007898546501147715	202	200,4	297	91	0007898546503148306	202	200,4	297					
42	0007898546501147716	197	195,4	297	92	0007898546503148307	197	195,4	297					
43	0007898546501147717	201	199,4	297	93	0007898546503148308	201	199,4	297					
44	0007898546501147718	198	196,4	297	94	0007898546503148309	198	196,4	297					
45	0007898546501147719	200	198,4	297	95	0007898546503148310	200	198,4	297					
46	0007898546501147720	200	198,4	297	96	0007898546503148311	200	198,4	297					
47	0007898546501147721	202	200,4	297	97	0007898546503148312	202	200,4	297					
48	0007898546501147724	197	195,4	297	98	0007898546503148313	197	195,4	297					
49	0007898546501147725	201	199,4	297	99	0007898546503148314	201	199,4	297					
50	0007898546501147731	198	196,4	297	100	0007898546503148315	198	196,4	297					

Cargo Control do Brasil
Fabio Argemiro
CPF: 289.403.809-94

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Deutsche Spediteurbedingungen 2016 (ADSp 2016 - German Freight Forwarding General Terms and Conditions 2
(SDR) is further limited to the higher of Euro 1 Million and 2 SDR/kg per claim provided that all claims per event are limited to the higher of Euro 2 Million and 2 SDR/
multimodal transport with sea carriage is involved to 2 SDR/kg. The ADSp 2016 can be downloaded from our website at www.carcon.com

KUKIL SPINNING CO., LTD.

2017-11-01

CERTIFICATE OF SAMPLE APPROVAL

Shipper : AGROGRAIN LTD SUCURSAL URUGUAY
Brazilian Raw Cotton : MID 1-1/8"
Shipment : '17 AUGUST - DECEMBER

Dear Sirs.

In accordance with the sample approval term in contract,

we hereby inform you our approval as follows:

NO.	LOT NO.	NO.	LOT NO.
1	18	10	1130
2	297	11	1131
3	3787	12	1132
4	1030	13	1134
5	1042	14	1136
6	1054	15	1139
7	1111	16	1142
8	150	17	1445
9	1126	18	200

Sincerely Yours,

YIRE CHO/Purchasing Dept.
KUKIL SPINNING CO., LTD.

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AGROGRAIN LTD – SUCURSAL URUGUAY
Ruta 8, km 17,5 – Edificio @3 – Oficina 114
Montevideo – 91600 – UY – Tel.: +598 2518-7800

BENEFICIARY'S CERTIFICATE

Date: December 18th., 2017

SHIPPER	CLAIDES LAZARETTI MASUTTI CPF: 203.740.702-53 ESTRADA CAMPOS DE JULIO/SAPEZAL KM 1159 LINHA MASUTTI CEP: 78.307000 CAMPOS DE JULIO - MT - BRAZIL ON BEHALF OF AGROGRAIN LTD SUCURSAL URUGUAY
CONSIGNEE	TO THE ORDER OF SHINHAN BANK VIETNAM DONGNAI BRANCH
NOTIFY	KUK IL VIETNAM CO., LTD NHON TRACH 2 INDUSTRIAL ZONE PHU HOI COMMUNE, NHON TRACH DIST, DONG NAI PR, VIET NAM
APPLICANT	KUK IL VIETNAM CO., LTD NHON TRACH 2 INDUSTRIAL ZONE PHU HOI COMMUNE, NHON TRACH DIST, DONG NAI PR, VIET NAM
VESSEL	MSC JEONGMIN, 748R
PORT OF LOADING	SANTOS, BRAZIL
PORT OF DISCHARGE	CAT LAI PORT IN HO CHI MINH, VIET NAM
BILL OF LADING	961810255

Description of goods &/or Services

DESCRIPTION OF GOODS
SALE NO. 35600658
BRAZIL RAW COTTON 2017 MID 1-1/8 3.7-4.7 NCL MIN 28GPT
SAMPLE APPROVAL BEFORE SHIPMENT
(OFFER NO. 17102705)
QUANTITY: 970,024LBS (440 METRIC TONS)
UNIT PRICE: USD 0.7651/LB
AMOUNT: USD 742,165.36
CFR HOCHIMINH, VIETNAM
(INCOTERMS 2010)

DOCUMENTARY CREDIT NUMBER VDM1301711AS-031
DATE OF ISSUE: 03.11.2017

We certify that all shipped cotton bales are the same with the samples approved by applicant.

AGROGRAIN LTD – SUCURSAL URUGUAY

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AGROGRAIN LTD – SUCURSAL URUGUAY

Ruta 8, km 17,5 – Edificio @3 – Oficina 114
Montevideo – 91600 – UY – Tel.: +598 2518-7800

Draft nr. 17007657SF
Drafts at: AT SIGHT

Montevideo, December 18th, 2017

Pay to the order of
AGROGRAIN LTD - SUCURSAL URUGUAY
RUTA 8, KM 17500, EDIFICIO 300 OFICINA 310-006
MONTEVIDEO, URUGUAY 91600

DUE: **USD** **37.430,10**
This SOLE BILL OF EXCHANGE
THIRTY SEVEN THOUSAND FOUR HUNDRED THIRTY UNITED STATES DOLLARS AND TEN CENTS

VALUE RECEIVED AND CHARGE THE SAME TO THE ACCOUNT OF:

DRAWEE: **SHBKKRSEAXXX**
SHINHAN BANK
20, SEJONG-DAERO 9-GIL, JUNG-GU
100 724 SEOUL

ISSUING BANK: **SHBKVNVXXXX**
SHINHAN BANK VIETNAM LIMITED
138-142 HAI BA TRUNG EMPRESS TOWER
HO CHI MINH CITY

DOCUMENTARY CREDIT NUMBER VDM1301711AS-031
DATE OF ISSUE: 03.11.2017

BY: **AGROGRAIN LTD – SUCURSAL URUGUAY**

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